



BUYER'S CLOSING AND FUNDING CONTINGENCY ADDENDUM



This Addendum is a part of the Residential Agreement ("Purchase Agreement") dated _____, 20____
between _____ ("Buyer")
and _____ ("Seller")
relating to the following Property:

Address (Street, City, State, Zip Code) _____

Legal Description

or see metes & bounds description attached as Exhibit _____, _____ County(ies),
New Mexico.

As used in this agreement, the term "satisfies" and any variation thereof means that the Buyer's property has closed and funded and the term "waives" and any variation thereof means that it is no longer necessary for the Buyer to sell his property in order to purchase the Seller's property.

1. **BUYER'S REPRESENTATION.** Buyer represents that Buyer has accepted an offer for the sale of Buyer's property located at _____ ("Buyer's Property").

A. Name of title/escrow company used for closing of Buyer's Property: _____

B. Date of Closing on Buyer's Property: _____

C. Buyer ☐ will ☐ will not furnish to Seller a copy of a fully executed purchase agreement for the sale of Buyer's Property. If applicable, to be furnished, no later than _____

2. **CONTINGENCY.** The Agreement is contingent upon the closing and funding of Buyer's Property on or before _____ ("Contingency Deadline"). If this Contingency is not satisfied or waived by Buyer by the Contingency Deadline, the Agreement shall terminate automatically, and the Earnest Money shall be refunded to Buyer.

3. **TERMINATION OF CONTRACT FOR SALE OF BUYER'S PROPERTY.** If the contract for the sale of Buyer's Property terminates for any reason, Buyer shall deliver notice to Seller within _____ days of Buyer receiving notice of the termination of the contract for sale of Buyer's Property ("Notification Date") and provide to Seller at that time evidence of such termination. In this event, the following options are available:

A. BUYER'S OPTIONS:

i. Proceed with this Agreement by waiving this Contingency. **IF BUYER WAIVES THIS CONTINGENCY AND FAILS TO CLOSE ON THE PROPERTY FOR FINANCIAL REASONS, BUYER SHALL BE IN DEFAULT OF THE AGREEMENT.** If Buyer elects to waive this Contingency, Buyer ☐ shall ☐ shall not provide Seller with the following by the Notification Date:

- If the Buyer is obtaining a loan on the Property, written documentation from Buyer's Lender that Buyer can qualify for a loan on the Property without first selling and closing on Buyer's Property;
- If the Buyer is paying cash or Seller is providing seller financing, evidence of Buyer's financial ability to close on the Property by the Settlement/Signing Date without first selling and closing on Buyer's Property, as determined in Seller's sole discretion; or

ii. Terminate this Agreement immediately; Earnest Money ☐ will ☐ will not be refunded to Buyer.

B. SELLER'S OPTIONS: If Buyer waives this Contingency and by the Notification Date, Buyer is unable to provide Seller with sufficient evidence of Buyer's financial ability to close on the Property, Seller may elect to terminate the Agreement. If Seller elects to terminate, Seller shall deliver written notice to Buyer within _____ days of the Notification Date and Earnest Money ☐ will ☐ will not be refunded to Buyer. If Seller fails to timely notify Buyer of Seller's intent to terminate, Seller shall be deemed to have approved Buyer's financials and accepted Buyer's waiver of this Contingency.

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C. OTHER OPTION: The parties may agree to remain under contract on the Property with the Agreement being amended as follows: This Buyer's Closing and Funding Contingency Addendum may be declared null and void (which means this Addendum shall have no legal effect or validity) and the parties shall further amend the Agreement by entering into a Buyer's Sale Contingency, see NMAR Form 2503 - Buyer's Sale Contingency Addendum.

BUYER(S)

_____ Buyer Signature	_____ Print Name	_____ Date	_____ Time
_____ Buyer Signature	_____ Print Name	_____ Date	_____ Time

SELLER(S)

_____ Seller Signature	_____ Print Name	_____ Date	_____ Time
_____ Seller Signature	_____ Print Name	_____ Date	_____ Time

BUYER'S NOTIFICATION OF SATISFACTION OR WAIVER OF CONTINGENCY

Buyer hereby notifies Seller that Buyer (check applicable box) ☐ WAIVES ☐ SATISFIES this Contingency. **If Buyer WAIVES this Contingency and subsequently is unable to fulfill the terms and conditions of the Agreement for financial reasons, the Earnest Money will NOT be refunded to Buyer; it will be paid to the Seller and Seller reserves all rights to pursue additional damages to which Seller may be entitled as a result of Buyer's financial inability to fulfill the terms and conditions of the Agreement.**

_____ Buyer Signature	_____ Print Name	_____ Date	_____ Time
_____ Buyer Signature	_____ Print Name	_____ Date	_____ Time

Acknowledged by Seller:

_____ Seller Signature	_____ Print Name	_____ Date	_____ Time
_____ Seller Signature	_____ Print Name	_____ Date	_____ Time

PER PARA. 3(C) ABOVE, THE PARTIES DECLARE THIS ADDENDUM TO BE NULL AND VOID.

_____ Buyer Signature	_____ Print Name	_____ Date	_____ Time
_____ Buyer Signature	_____ Print Name	_____ Date	_____ Time
_____ Seller Signature	_____ Print Name	_____ Date	_____ Time
_____ Seller Signature	_____ Print Name	_____ Date	_____ Time